



All Saints, Streatham, Act 1968

CHAPTER vii

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ELIZABETH II



1968 CHAPTER vii

An Act to provide for the disposition of the church of All Saints, Streatham, and the use for other purposes thereof ; and for purposes incidental thereto.
[30th May 1968]

WHEREAS by deed dated the 30th November, 1896, the trustees of the will of Elizabeth Drew granted to the Ecclesiastical Commissioners for England the land described in the schedule to this Act, to be appropriated for the site of an intended new church and devoted, when consecrated, to ecclesiastical purposes for ever:

And whereas the church of All Saints, Streatham (hereafter called "the church"), was thereafter erected on the said land and was consecrated and became a chapel of ease within the parish of Saint Leonard, Streatham, in the diocese of Southwark:

And whereas by an Order made on the 28th March, 1952, the Ecclesiastical Commissioners for England confirmed a scheme for giving effect to proposals for the rearrangement of the pastoral supervision of the parish of Streatham and five other parishes which, by previous Order of the said Commissioners dated 11th April, 1946, were together declared to be an ecclesiastical reorganisation area for the purposes of the Reorganisation Areas Measure, 1944: 1944 No. 1.

And whereas subsequent to and as a consequence of the last-mentioned Order the church as a chapel of ease became redundant to the needs of the parish of Streatham (hereafter called "the parish") and by a further Order made on the 27th November, 1953, the said Commissioners confirmed a Supplementary Scheme to give effect to further proposals for the rearrangement of the pastoral supervision of the parish which provided (inter alia) that, subject to certain conditions, the church should be appropriated primarily to use as a parish hall and, subject to that use, to certain other uses allied to or not inconsistent with the welfare or principles of the Church of England.

1944 No. 1.

And whereas by virtue of the provisions of the Reorganisation Areas Measure, 1944, and the said Supplementary Scheme the church and the site thereof are now vested in the South London Church Fund and Southwark Diocesan Board of Finance and the appropriation and use of the church are subject to the permission of the incumbent of the benefice of the parish, the present incumbent (hereafter called "the incumbent") being the Reverend Philip Morell Smith:

And whereas the church, which is now commonly known as Howland Hall, is no longer required for the purposes mentioned in the said Supplementary Scheme, and the cost of its upkeep and repair lays an unnecessary and increasing burden on the available resources of the parish, and it is desirable that the church should be made available for other purposes and that the parish should be relieved of the expense of upkeep and repair:

And whereas it is expedient that such provisions as are contained in this Act with respect to the sale, leasing, use and disposition of the church and of the site thereof should be enacted:

And whereas no part of the church or of the site thereof has been used for the interment of human remains:

And whereas the Right Reverend Father in God, Mervyn, by divine permission Lord Bishop of Southwark, has consented to the provisions of this Act and those provisions have been approved by the incumbent and by the parochial church council of the parish:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and

with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the All Saints, Streatham, Act 1968. Short title.

2.—(1) In this Act, unless there be something in the subject or Interpretation. context repugnant to such construction—

“ the bishop ” means the Bishop of Southwark for the time being and during a vacancy in the see of Southwark includes the guardians of the spiritualities thereof;

“ the board ” means the South London Church Fund and Southwark Diocesan Board of Finance;

“ the parish ” means the parish of Streatham as for the time being constituted;

“ the parochial church council ” means the parochial church council of the parish;

“ the scheduled land ” means the land described in the schedule to this Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

3.—(1) The board may sell, lease or otherwise dispose of the scheduled land for such price or consideration in such manner and upon and subject to such terms and provisions as they may think fit. Sale, etc., of scheduled land and application of proceeds.

(2) Any moneys received by the board under this section shall, after payment of the costs of preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto incurred by the board be applied by the board in establishing a fund to be held upon trust to pay the income therefrom to the parochial church council who shall apply the same in or towards defraying the cost of repairing and maintaining the parish hall adjacent to the parish church of Saint Leonard, Streatham, or for such other ecclesiastical purpose within the parish as may be charitable and as the bishop may from time to time approve, and upon trust to apply the capital thereof (to such extent as the board may think fit) in defraying at the request of the parochial church council the cost of structural repairs to the said parish hall.

Discharge of trusts and restrictions affecting scheduled land and saving for private rights.

4. As from the passing of this Act the scheduled land shall be freed and discharged from all trusts, uses, obligations, disabilities and restrictions whatsoever (including the effects of consecration) which immediately before the passing of this Act attached thereto under ecclesiastical law or otherwise and from all other trusts, uses, obligations, disabilities and restrictions whatsoever which attached thereto immediately before the passing of this Act by reason of such land having been or formed the site of a church or the enclosure of a church:

Provided that nothing in this Act shall operate to affect prejudicially any private right or easement over the said land or any part thereof which attached thereto immediately before the passing of this Act.

Power to use scheduled land for other purposes.

5. Notwithstanding anything contained in any enactment, but, subject to the provisions of this Act, it shall be lawful at any time after the passing of this Act to use, deal with or dispose of the scheduled land or any part thereof for any purpose in like manner as if no part thereof had ever been or formed the site of a church or the enclosure of a church.

Saving for town and country planning.
1962 c. 38.

6. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land, shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Act.

Costs of Act.

7. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the board.

SCHEDULE

Section 2.

DESCRIPTION OF THE SCHEDULED LAND

All that piece of land in the London borough of Lambeth, containing 70 square yards or thereabouts and forming the site of the church of All Saints, Streatham (now commonly known as Howland Hall), and land appurtenant thereto, bounded by a line commencing at a point on the Sunnyhill Road frontage immediately adjoining the western boundary of No. 41 Sunnyhill Road aforesaid, thence proceeding in a west-south-westerly direction along the said frontage for a distance of 60 feet or thereabouts, thence proceeding in a north-easterly direction for a distance of 117 feet or thereabouts, thence proceeding in an east-south-easterly direction for a distance of 60 feet or thereabouts to the western boundary of No. 41 Sunnyhill Road aforesaid, and thence along the said boundary in a south-westerly direction for a distance of 120 feet or thereabouts to and terminating at the point of commencement, together with the said church erected thereon or in some part thereof.



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